

****NEWSLETTER N. 516 of January 19, 2024****

****Justice: Privacy Authority, more protections for video-recorded acts****

****Telemarketing: Privacy Authority fines a call center 60,000 euros****

****Health, donation of the body to science: approval from the Authority****

****Justice: Privacy Authority, more protections for video-recorded acts****

Greater confidentiality for procedural acts documented in audiovisual form, such as the interrogation of the suspect. This is what the Privacy Authority recommends in its opinion on a draft legislative decree from the Ministry of Justice amending Legislative Decree No. 150 of October 10, 2022, the so-called Cartabia reform of criminal proceedings. The Authority - while expressing a favorable opinion on the draft decree, in line with data protection regulations - believes, however, that due to its nature, the amending decree could lend itself to the introduction of an additional coordinating norm regarding the publicity regime of acts documented through video recording. The Cartabia reform - to ensure a more accurate representation of procedural acts - has, in fact, significantly expanded, in accordance with the delegation criteria, the use of audiovisual reproduction as a general method of documentation, intended to complement the minutes for acts of the proceedings and, in particular, as a preferred method of documenting the suspect's guarantee interrogation. The Authority, therefore, considering the significant impact of this innovation on the processing of personal data of the parties and third parties involved in various capacities - suggests to the Ministry to introduce a special publicity regime for acts documented through audiovisual recording systems, capable of balancing the needs for publicity, the right to privacy, and the principle of data minimization, as established by the EU Regulation. Finally, the Authority expresses its utmost willingness to contribute to the analysis of the issue and the definition of such regulation.

****Telemarketing: Privacy Authority fines a call center 60,000 euros****

Company already sanctioned for failing to respond to the Authority's requests

New intervention by the Privacy Authority to protect consumers against unwanted calls. The Authority has imposed a fine of 60,000 euros on a call center operating in the electricity contract sector for unlawful processing of personal data. The company had already received a fine of 10,000 euros for failing to respond to the Authority's request for information, which had been activated following a complaint from a user who reported receiving promotional calls without consent. After the fine for the lack of response, the Authority initiated an inspection to verify the legality of the processing carried out by the call center. Inspections revealed that the company had obtained the complainant's personal data from a list provider based in Moldova, from which it had purchased 100,000 contacts used to make over 32,600 calls. The calls had led to the signing of approximately 300 contracts. Following the inspection activity, the Authority found numerous violations. In particular, the Authority noted that the call center had not verified the legality of the lists acquired from its commercial partner. It had not checked the origin of the data, whether the information had been provided to users, and whether the consents of the recipients of the promotional campaign had been obtained. The call center itself, moreover, during the calls did not provide information about its identity, limiting itself to asking the user if they could be contacted again if interested in the services offered. Finally, before starting the promotional campaigns, the company had not even conducted the necessary checks in the Public Opposition Register, nor had it adopted suitable measures to allow responses to users' requests. In light of the serious violations found and the negligent nature of the conduct, the Authority therefore imposed a fine of 60,000 euros on the call center. The Authority also ordered the company to delete all unlawfully acquired data and to implement appropriate technical, organizational, and control measures to ensure that the processing of users' personal data is carried out in compliance with privacy regulations throughout the entire supply chain.

****Health, donation of the body to science: approval from the Authority****

The local health authorities will send the collected declarations to the database of advance directives. Favorable opinion from the Privacy Authority on the draft decree regulating the methods of telematic transmission of consent declarations for the use of one's body and tissues after death.

****Post-mortem for study, training, and scientific research purposes.****

The draft decree and the related technical regulations, submitted to the Authority by the Ministry of Health, take into account the observations made by the Authority during the numerous discussions with the Ministry.

The draft provides for the establishment of a specific section within the database of advance treatment directives (DAT), maintained by the Ministry of Health, where the Local Health Authorities (ASL) will have to electronically enter the consent declarations of the donors. In addition to the information related to the donor, the declarations must also contain a series of elements: the details of the trustee and the substitute appointed by the donor; the acceptance of the appointment by the trustee and the substitute; the declaration of consent from both parents in the case of minor donors; any revocations. The declarations must be drawn up as a public deed or as a notarized private writing. Alternatively, they may be delivered in person by the donor to the Civil Status Office of the municipality of residence or to healthcare facilities, or communicated through video recording or devices that allow donors with disabilities to interact. In all cases, they must still be transmitted to the relevant ASL, which is responsible for preserving them and transmitting them electronically to the DAT database.

Finally, the data may only be disseminated by the Ministry of Health in anonymized and aggregated form and must be deleted ten years after the donor's death, while in the case of minor donors, upon reaching the age of 18.

****THE ACTIVITIES OF THE AUTHORITY - FOR THOSE WHO WANT TO KNOW MORE****

The most important interventions and measures recently adopted by the Authority

When you exercise to stay fit, do you also care about privacy?

From the Authority, useful tips for using apps and fitness tracker devices while protecting personal data – January 8, 2024

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